

12. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

This matter is continued by the Court to March 23, 2026. The demurrer filed by Elisabeth Masoudi is advanced from May 11 to March 23, 2026. Opposition and reply are due per code.

Defendants Simona Zakheim and Hyden Zakheim shall give notice of the new hearing dates to all parties.

13. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON APPLICATION
FILED BY:

TENTATIVE RULING:

Plaintiff Prodigy Management, LLC ("Plaintiff") filed an Application for Order for Issuance of Writ of Attachment after Hearing on September 12, 2025 (the "Application for Writ of Attachment"). The Application for Writ of Attachment was initially set for hearing on January 26, 2026. The application was subsequently continued to February 23, 2026. No opposition has been filed.

Background

Plaintiff filed its Complaint on June 5, 2025 alleging that Khristain Joy Buison and Buison Enterprise Inc. failed to pay certain amounts due and owing in relation to the purchase of a pizza restaurant. The Complaint includes claims for breach of contract, common counts and fraud.

Analysis

First, the application is procedurally defective. The Application for Writ of Attachment paper (AT-105) was accompanied by a "NOTICE OF APPLICATION FOR WRIT OF POSSESSION AND HEARING" (CD-110). The property sought to be attached is certain real property located in Brentwood, California. The proper notice for an application for a writ of attachment must given using form AT-115. For this reason alone, the Court would deny the application.

Second, no supporting declaration other than the Application for Writ of Attachment supports the application. The Application for Writ of Attachment is signed under penalty of perjury and contains some information about the nature of the alleged obligation and the damages figures, including a short attachment ("ATTACHMENT TO AT-105 SECTION 7"). However, this is woefully deficient. There is very little information given regarding the breach of the subject contract and calculation of the damages. No exhibits are attached, such as the described promissory note. Most importantly, however, what is stated is only attested to by the attorney. There is no foundation that the attorney has personal knowledge of the underlying transaction and breach.

Disposition

The Court finds and orders as follows:

1. The Application for Writ of Attachment is DENIED.
2. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: C25-02473

CASE NAME: MARGARET FERRARI VS. JAMES KLEIN

***HEARING ON MOTION IN RE: ORDER SUBSTITUTING LAURIE RENE KLEIN, SUCCESSOR IN INTEREST OF JAMES KLEIN, DECEASED, IN THE PLACE OF DECEASED DEFENDANT AND ALLOWING ACTION TO BE CONTINUED**

FILED BY: FERRARI, MARGARET

TENTATIVE RULING:

Plaintiff Margaret Ferrari ("Plaintiff") filed a Motion for Order Substituting Laurie Rene Klein, Successor in Interest of James Klein, Deceased, in the Place of Deceased Defendant and Allowing Action to be Continued Against the Successor in Interest, and Allowing the Filing of a First Supplemental Complaint on January 20, 2026 (the "Motion to Substitute Successor-in-Interest as Defendant"). The Motion to Substitute Successor-in-Interest as Defendant was set for hearing on February 23, 2025. The motion is unopposed.

Background

Plaintiff filed her Complaint on August 28, 2025 against Home Depot U.S.A., Inc. and an individual, James aka "Jimi" Klein ("Mr. Klein"). The Complaint stems from an alleged accident occurring at a Home Depot involving Plaintiff and its employee Mr. Klein.

Since the filing of the Complaint, Plaintiff has learned that Mr. Klein is deceased. See Declaration of Patrick R. Campbell filed January 20, 2026 ("Supporting Declaration"), ¶12 *et seq.*

Plaintiff seeks leave to file a supplemental complaint to allege that Mr. Klein is deceased and that Laurie Rene Klein is his successor in interest.

Analysis

Pursuant to Code of Civil Procedure section 377.40, a civil claim against a decedent must be brought against the decedent's personal representative or, **to the extent provided by statute, against the decedent's successor in interest.** See Code Civ. Proc. § 377.40 (subject to the Probate Code "... a cause of action against a decedent that survives may be asserted against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest.") (emphasis added); see also *Smith v. Cimmet* (2011) 199 Cal.App.4th 1381, 1390-1391 (any litigation must be maintained by, or against, the executor or personal representative of the estate); see also Code Civ. Proc. §§ 377.11 ("decedent's successor in interest means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.") and 377.42 ("In an action or proceeding against a decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest, on a cause of action against the decedent, all damages are recoverable that might have been recovered against the decedent had the decedent lived except damages recoverable under Section 3294 of the Civil Code or other punitive or exemplary damages.").

Plaintiff has made a proffer that it can allege that Mr. Klein is deceased and that Laurie Rene Klein is his wife and successor in interest.